

26CHCV01378 26CHCV01378

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF43%2C08%2F27%2F2026

Source SHA-256: d01a3fb55eb9472c71b950baf882d4682f903915ecfccd2d66fc29f4fed725b2

Case Number: 26CHCV01378 Hearing Date: August 27, 2026 Dept: F43

Dept. F43

Hearing Date: 08-27-26

Case # 26CHCV01378, Doe v. Diaz,
et al.

Trial Date: None set.

DEMURRER AND MOTION
TO STRIKE

MOVING PARTIES: Defendants Ty Diaz, Arturo Diaz, and Monique
Diaz

RESPONDING PARTY: Plaintiff John Doe, by and through his guardian
ad litem Jane Doe

RELIEF REQUESTED

Order sustaining demurrer to the First
Amended Complaint and striking punitive damages from the Third and Sixth Causes
of Action.

RULING: Demurrer is sustained as to the First, Second,
and Fifth Causes of Action with leave to amend, sustained as to the Fourth and
Sixth Causes of Action without leave to amend, and overruled as to the Third
Cause of Action.

Motion to strike is denied in part as to the Third Cause of Action and granted in part as to the Sixth Cause of Action without leave to amend.

SUMMARY OF ACTION

On April 1, 2026, plaintiff Elijah Sim, a minor by and through his guardian ad litem Jane Doe, (Plaintiff) filed this discrimination action against Ty Diaz and his parents Arturo Diaz and Monique Diaz (Defendants), concerning prolonged racial harassment that occurred from June 2025 through January 26, 2026, and culminated in a physical assault and retaliation.

Plaintiff filed the First Amended Complaint on April 16, 2026, asserting violations of Civil Code sections 51.7 and 52.1, intentional infliction of emotional distress, and civil conspiracy against all defendants; and parental liability for willful misconduct of a minor and negligent supervision against Arturo Diaz and Monique Diaz.

On July 30, 2026, Defendants filed a demurrer to the First Amended Complaint and a motion to strike punitive damages. Plaintiff filed oppositions on August 13, 2026, and Defendant replied on August 18, 2026.

MEET AND CONFER

Demurrers and motions to strike must be accompanied by a “meet and confer” declaration stating that the parties met and conferred “in person, by telephone, or by video conference” and stating that (1) the parties failed to reach an agreement resolving the issues raised in the demurrer and motion to strike; or (2) that the party who filed the pleading subject to the demurrer or motion to strike failed to respond to the meet and confer request or failed to meet and confer in good faith. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).) In Department F43, meet and confer means in person or via phone, not by letter or email. (Department F43 Courtroom Information, p. 2.)

The “meet and confer” requirement is met,

because the moving papers indicate counsel spoke on June 29, 2026, but did not come to an agreement on issues with the First Amended Complaint. (Declaration of Kristine M. Gamboa ¶¶ 6, 8.)

FIRST AMENDED COMPLAINT'S ALLEGATIONS

Plaintiff John Doe is a Korean American minor student who was enrolled at West Ranch High School in Valencia, CA in the summer of 2025 and joined the school's varsity baseball team. (FAC ¶¶ 1, 9.) At the time, Plaintiff was a junior with a candidacy for the United States Air Force Academy, a competitive academic record, and a baseball profile under active consideration by Division I programs. (Id. ¶ 9.) Defendant Ty Diaz (Ty) is an adult who committed the alleged conduct against Plaintiff while both a minor and an adult. (Id. ¶ 2 [became an adult in October of 2025].) Defendants Arturo Diaz (Arturo) and Monique Diaz (Monique) are defendant Ty's parents. (Id. ¶¶ 3-4.)

From the first day of summer camp practice in June 2025 and continuing through at least January 26, 2026, Plaintiff was subjected to a sustained, deliberate, and escalating campaign of racial harassment, intimidation, and abuse by fellow members of the baseball team, including defendant Ty. (FAC ¶ 9.) The racial harassment included: repeated use of the racial slur "chink" directed at Plaintiff by Ty while Plaintiff was confined to Ty's vehicle on at least six separate occasions; participation by Ty in a dugout whiteboard campaign in which a racist caricature of Plaintiff depicting exaggerated Asian features and a conical hat was repeatedly redrawn; daily use of the racially mocking nickname "Eri Kim" spoken in an exaggerated imitation of an Asian accent, in which Ty participated beginning on October 25, 2025; and Ty's deliberate racial conflation of Plaintiff with another Asian student on December 22, 2025, calling Plaintiff "Dylan Seafood" in front of several students. (FAC ¶¶ 10, 18-19.) On one occasion, Ty distributed snacks to other passengers in his vehicle but excluded Plaintiff, stating "none for chinks." (Id. ¶ 13.) On other occasions, Ty told Plaintiff "No chinks allowed in the car" and would exclude Plaintiff from his vehicle based on his race. (Id. ¶ 14.) Plaintiff believes several of these incidents occurred before defendant Ty reached the age of majority. (Id. ¶ 16.) Ty also took a photograph of Plaintiff with racist caricature drawing and posted the photograph to a group chat. (Id. ¶ 17.) By December 13, 2025, the nickname "Eri Kim" appeared on a coaching-staff-authored lineup card, reflecting its institutional normalization within the program.

On January 26, 2026, during bullpen practice

at West Ranch High School, Plaintiff was physically assaulted by several teammates who threw rocks that struck Plaintiff hand and in his left eye. (FAC ¶ 20.)

As Plaintiff lay injured on the ground, someone standing over him said “it doesn’t matter, he can’t see anyway.” Ty did not participate in the physical assault. After the assault, defendant Ty telephoned Plaintiff and confirmed that the racial statement had been made during the assault. (Id. ¶

21.) The assault was coordinated by the teammates through a group chat called “T Daw Fellas.” (Id. ¶ 22.) It is unclear whether this is the group chat where defendant Ty allegedly posted a photograph of Plaintiff standing next to inappropriate drawing. (See id. ¶

17.) In the group chat, Plaintiff indicated that his eye had “recovered,” and a teammate responded with an expletive and immediately removed Plaintiff from the chat. The following morning, as Plaintiff arrived at school with his parents to report the assault to administration, Plaintiff was simultaneously removed from the main team group chat. (Id. ¶ 22.)

Plaintiff has not returned to West Ranch High School since January 26, 2026. (FAC ¶

23.) As a result Plaintiff has suffered academic disruption to his junior year, including grade impacts and loss of course credit; loss of participation in the school’s varsity baseball program during the spring 2026 season; elimination of game film, statistics, and coaching evaluations critical to Division I athletic recruitment; and material impairment of his candidacy to the United States Air Force Academy, including damage to the character evaluations, extracurricular record, and demonstrated leadership qualities that a USAFA appointment requires. Plaintiff has suffered economic, physical, and emotional damages, including fear, humiliation, anxiety, and psychological trauma directly attributable to the sustained racial harassment campaign; and loss of the enjoyment of high school athletics and the social inclusion associated with team membership. (Id. ¶

26.) Plaintiff has also suffered damages, including medical and counseling expenses.

As defendant Ty’s parents, defendants Arturo and Monique knew or should have known that defendant Ty’s pattern of conduct posed an unreasonable risk of harm to others.

(FAC ¶ 24.) Arturo and Monique owed a duty to exercise ordinary parental care and diligence and breached that duty by failing to monitor, investigate, or take corrective action concerning

Ty's conduct and failed to prevent him from continuing to engage in racially discriminatory and intimidating conduct directed at Plaintiff. (Id. ¶¶ 24-25.)

ANALYSIS

A. Demurrer

A party may respond to a pleading against it by demurrer based on one or more of eight enumerated grounds, including that “the pleading does not state facts sufficient to constitute a cause of action” and is uncertain, meaning “ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subds. (e), (f).) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) The grounds for demurring must be apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law[.]” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

California courts must “give the complaint a reasonable interpretation, reading it as a whole and its parts in context,” rather than reading each cause of action in complete isolation. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) However, the “reading it as a whole” standard does not automatically import facts from a general statement of facts section into individual causes of action that make no reference to those facts. Each cause of action must be supported by ultimate facts. (Doheny Park Terrace Homeowners Ass'n, Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1085; see also Thompson v. Spitzer (2023) 90 Cal.App.5th 436, 452.) When a cause of

action contains only a bare recitation of legal elements, it presents nothing but legal conclusions. The complaint may avoid the “legal conclusions” trap by expressly incorporating factual allegations in prior sections or causes of action into each subsequent cause of action to save repetition. (See *Kajima Eng’g & Construction, Inc. v. City of Los Angeles* (2002) 95 Cal.App.4th 921, 931-932; see also *Doheny Park Terrace Homeowners Ass’n, Inc.*, supra, 132 Cal.App.4th at p. 1096.) The court then reads the later causes of action as if they contain the incorporated allegations.

1.

First Cause of Action: Violation
of Ralph Civil Rights Act (Civ. Code, § 51.7)

Plaintiff alleges violation of the Ralph Civil Rights Act
against all defendants.

Defendants contend Plaintiff alleges no facts
demonstrating anything beyond callous and inappropriate behavior that does not
rise to the level committing or threatening violence.

In opposition, Plaintiff contend the allegations concerning
Plaintiff being confined to defendant Ty’s vehicle, being told no “chinks” were
allowed in the vehicle, being subjected to the racist caricature, and comments
about his eyes which escalated into a physical assault, is sufficient to
demonstrate a pattern under which a reasonable person in Plaintiff’s shoes (a
Korean American minor and high school junior), would feel unsafe. According to Plaintiff, the allegations
demonstrate defendant Ty aided, incited, and conspired with others to racially
harass, intimidate, and retaliate against Plaintiff. Furthermore, Plaintiff asserts he alleges
sufficient facts to establish a claim based on speech pursuant to subdivision
(e).

The Ralph Civil Rights Act is a hate crime statute that
requires actual violence or intimidation by threat of violence directed at a
person or their property because of race.
(Civ. Code, § 51.7, subd. (b)(1).)

All persons within California have the right to be free from any
violence, or intimidation by threat of violence, committed against their
persons or property because of political affiliation, or on account of any
characteristic listed or defined in Civil Code section 51, subdivisions (b) or

(e) of Section 51, or because another person perceives them to have one or more of those characteristics. (Civ. Code, § 51.7, subd. (b)(1).)

To plead a claim under the Ralph Civil Rights Act, the “plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or their property, and a motivating reason for doing so was a prohibited discriminatory motive, or that plaintiff aided, incited, or conspired in the denial of a protected right.”

(Gabrielle A. v. County of Orange (2017) 10 Cal.App.5th 1268, 1291.) Purely offensive or discriminatory verbal conduct and non-physical exclusionary acts do not, standing alone, satisfy this threshold.

(Civ. Code, § 51.7, subd. (e)(1).)

However, verbal conduct that is coupled with a showing of the following demonstrates a viable claim: (A) The speech itself threatens violence against a specific person or group of persons. (B) The person or group of persons against whom the threat is directed reasonably fears that, because of the speech, violence will be committed against them or their property. (C) The person threatening violence is acting in reckless disregard for the threatening nature of their speech. (D) The person threatening violence has the apparent ability to carry out the threat.”

(Civ. Code, § 51.7, subd. (e)(1)(A)-(D).)

Plaintiff fails to adequately allege facts demonstrating defendant Ty threatened violence or committed violence pursuant to the Ralph Civil Rights Act.

In Ramirez v. Wong (2010) plaintiff tenants sued their landlord after the resident manager entered their apartment in their absence and sniffed their underwear. (Ramirez v. Wong (2010) 188 Cal.App.4th 1480, 1482, 1483.) Plaintiffs contended a jury could find a person could reasonably fear rape or other sexual attacks from the resident manager due to his conduct and that plaintiffs’ physical presence was not required. (Id. at p. 1486.) Although the manager’s conduct was deeply offensive, his conduct did not constitute a threat because no expression of intent to harm was made in plaintiffs’ presence or otherwise. (Id. at p. 1486-1487.) The Court of Appeal sustained the demurrer to the Ralph Act claim and held that “There can be no ‘threat of violence’ without some expression of intent to injure or damage [the] plaintiff[] or their

property,” defined “‘threat’ as involving an ‘expression of an intention to inflict evil, injury, or damage on another.’”

(Id. at p. 1486.) In *Animal*

Protection & Rescue League (2025) the Court of Appeal reaffirmed *Ramirez*

v. Wong. (*Animal Protection &*

Rescue League, Inc. v. County of Riverside (2025) 111 Cal.App.5th 914, 919-920.) The Court held that bare allegations that a

law enforcement officer made a statement he would arrest an individual falls short of expressing an intent to injure.

(Id. at p. 919.)

Plaintiff alleges racial bias, but the alleged conduct

does not rise to threats of violence based on race or showing an intent to commit violence based on the basis of race.

Furthermore, Plaintiff alleges no intent or motive by defendant Ty to inflict injury on Plaintiff by words or conduct.

At most, Plaintiff alleges defendant Ty had a pattern of directing

deeply offensive racist language toward Plaintiff, with his teammates, and

excluding Plaintiff through use of racial slurs and caricatures. Plaintiff claims defendant Ty along with other teammates called Plaintiff a racial slur while Plaintiff was riding in

Ty’s car, continued redrawing a racist caricature in the baseball team dugout, called

Plaintiff a racially mocking nickname while using an imitation of an Asian

accent, conflated Plaintiff with another Asian student, used a racial slur to

exclude Plaintiff from receiving snacks and riding in his car, and refused to

allow Plaintiff in his car because he is a “chink.” (FAC ¶¶ 10-19.) Plaintiff focuses on his “confinement” to

Ty’s car and the pattern of racist language and name calling as putting a

reasonable person of his race in fear of violence. But this conduct and language do not demonstrate

committing of violence or threatening to commit violence, considering Plaintiff’s

allegations suggest he chose to ride in defendant Ty’s car.

Although Plaintiff was injured during the physical

assault on January 26, 2026, where an individual made a racist statement about

his eyes, defendant Ty did not participate in the assault and only confirmed

the use of the racist statement afterwards.

(FAC ¶¶ 20-21.) Furthermore,

Plaintiff’s allegations do not establish that defendant Ty was a member of the

“T Dawg Fellas” chat, that he coordinated with the teammates in the chat, or

that he was involved in deleting messages concerning whether Plaintiff had

reported the incident. (Id. ¶

22.) Plaintiff previously alleged Ty posted the caricature photograph to a group chat but did not clarify whether that chat was the "T Dawg Fellas" chat.

Without sufficient allegations to demonstrate violation of the Ralph Act by defendant Ty, Plaintiff lacks a basis for alleging Civil Code section 1714.1 liability against defendants Arturo and Monique. "Any act of willful misconduct of a minor that results in injury or death to another person or in any injury to the property of another shall be imputed to the parent or guardian having custody and control of the minor for all purposes of civil damages, and the parent or guardian having custody and control shall be jointly and severally liable with the minor for any damages resulting from the willful misconduct." (Civ. Code, § 1714.1, subd. (a).)

Plaintiff claims he can amend the complaint to restructure the Ralph Act allegations around the January 26, 2026 assault, together with conspirator and aider liability under Civil Code section 52, subdivision (b), including facts concerning Ty's advance knowledge of, encouragement of, or concerted participation in that assault and the basis on which a reasonable person in Plaintiff's position would perceive both a threat of violence and the apparent ability to carry it out. (Opposition at p. 12:5-18.)

Therefore, the court sustains Defendants' demurrer to the First Cause of Action with leave to amend.

2.

Second Cause of Action: Violation of Bane Civil Rights Act (Civ. Code, § 52.1)

Plaintiff alleges violation of the Bane Civil Rights Act against all defendants.

Defendants contend Plaintiff fails to allege sufficient facts to demonstrate an interference with Plaintiff's civil rights. According to Defendants, Plaintiff's allegation concerning "threats, intimidation, and coercion" is conclusory and insufficient.

In opposition, Plaintiff claims Defendants only address threats rather than coercion. The coercion allegations do not depend on speech but on the teammates use of a group chat to determine whether Plaintiff had snitched about the eye injury, called Plaintiff an expletive, removed him from the group chat, and deleted the

group chat messages when Plaintiff and his parents arrived at the school to report the assault to the administration.

According to Plaintiff, Plaintiff's inability to leave a confined vehicle, the creation and publication of the racist caricature photograph, defendant Ty's participation in coordinated post-assault communications, and the retaliatory group-chat removals timed to Plaintiff's report support a coercion theory.

To adequately allege a cause of action for a violation of the Tom Bane Civil Rights Act, plaintiff must allege (1) intentional interference or attempted interference with a state or federal constitutional or legal right, and (2) the interference or attempted interference was by threats, intimidation, or coercion. (Allen v. City of Sacramento (2015) 234 Cal.App.4th 41, 67, citations omitted.) Plaintiff must allege that defendant interfered with rights secured by the U.S. Constitution or laws of the United States or the California Constitution and laws of the state. (Civ. Code, § 52.1, subd. (b).)

Civil Code section 52.1 requires a showing of "specific intent" to demonstrate interference with a protected right or at minimum acted in reckless disregard of such right.

(Cornell v. City and County of San Francisco (2017) 17 Cal.App.5th 766.) Cornell

established a two-prong for finding specific intent. The court must first determine as a matter of law whether the right at issue is clearly delineated and plainly applicable under the circumstances of the case. (Murchison v. County of Tehama (2021) 69 Cal.App.5th 867, 896, citations omitted.) If the right is vague or novel, the specific intent standard cannot be satisfied. If the first condition is satisfied, the jury must make a factual determination of whether the defendant committed the act in question with the particular purpose of depriving the victim of the enjoyment of the interests protected by that right.

(Ibid.) Subjective awareness of wrongdoing is not required, but reckless disregard of a clearly established right is sufficient.

The First Amended Complaint fails to adequately allege sufficient facts to constitute a violation of Civil Code section 52.1 as to Ty's conduct alone and his parents' liability for that conduct.

Plaintiff alleges defendant Ty interfered with his right to be free from racial discrimination and racially motivated harassment, including (1) the Equal Protection Clause of the Fourteenth Amendment, (2) 42 U.S. § 1981, and Civ. Code sections 51 and 51.7. (FAC ¶ 36.) But Plaintiff fails to allege actual “threats, intimidation, and coercion.” (Julian v. Mission Community Hospital (2017) 11 Cal.App.5th 360, 395 [speech alone is insufficient].) “Speech alone is not sufficient to support an action brought pursuant to subdivision (b) or (c), except upon a showing that the speech itself threatens violence against a specific person or group of persons; and the person or group of persons against whom the threat is directed reasonably fears that, because of the speech, violence will be committed against them or their property and that the person threatening violence had the apparent ability to carry out the threat.” (Civ. Code, § 52.1, subd. (k).)

Here, Plaintiff’s allegations against defendant Ty are based on Ty’s offensive speech toward Plaintiff, Ty refusing Plaintiff snacks and a ride based on the racially offensive speech, Ty’s racially offensive caricature, and Plaintiff being called a racial slur while being confined to defendant Ty’s vehicle. (FAC ¶ 37.) As stated previously, Plaintiff’s allegations suggest Plaintiff chose to ride in Ty’s vehicle and was not forced to enter the vehicle.

Plaintiff also contends he alleges defendant Ty used “coercion” to interfere with Plaintiff’s continued exercise of his right to be from violence, intimidation, and threat of violence on the basis of race and his ability to report the violation and seek redress. (Opposition at p. 10:1-5.)

But Plaintiff alleges no violence or threats of violence by defendant Ty or that defendant Ty used coercion, through racial slurs or exclusionary conduct, in order to interfere with Plaintiff’s rights. Plaintiff fails to allege he exercised any rights until after the physical assault which Plaintiff admits defendant Ty was not involved. At most, defendant Ty confirmed to Plaintiff that another unnamed individual made a racially offensive statement during the physical assault. Nor does Plaintiff allege defendant Ty was apart of the “T Dawg Fellas” group chat, asked if Plaintiff “snitched,” or deleted the group messages. At most, Plaintiff alleges defendant Ty directed racially offensive language and drawings towards Plaintiff and wanted to exclude Plaintiff from snacks and his vehicle. Plaintiff alleges no conduct or speech by

defendant Ty demonstrating threats, intimidation, or coercion. (FAC ¶¶ 37-38.)

Without an adequate underlying claim against defendant Ty's conduct as a minor, Plaintiff has failed to establish Bane Act liability against defendants Arturo and Monique.
(See Civ. Code, § 1714.1, subd. (a).)

Plaintiff claims he can amend the complaint to include facts concerning Ty's involvement in the January 26, 2026, assault, facts identifying the persons who removed Plaintiff from the team group chats, Ty's role in directing or participating in those removals, and Ty's intent thereby to deter Plaintiff from reporting the harassment and seeking redress. (Opposition at p. 12:5-18.)

Therefore, the court sustains Defendants' demurrer to the Second Cause of Action with leave to amend.

3.

Third Cause of Action:

Intentional Infliction of Emotional Distress

Plaintiff alleges intentional emotional distress against all defendants.

Defendants contend the Plaintiff alleges no facts that the defendants specifically or individually engaged in extreme and outrageous conduct with the intention of causing Plaintiff emotional distress. (Demur at p. 4:16-18.) According to Defendants, Plaintiff does not attempt to explain why Defendants would want to cause Plaintiff extreme emotional distress. (Id. at p. 4:18-20.)

In opposition, Plaintiff contends he sufficiently alleges a pattern of sustained extreme and outrageous conduct that was directed at a minor in which ordinary social exits were closed. (Opposition at pp. 10:20-11:4.) According to Plaintiff, motive is not an element of intentional infliction of emotional distress. (Id. at p. 11:5-16.)

To plead intentional infliction of emotional distress, the complaint must allege that: (1) defendant engaged in extreme and outrageous conduct; (2) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (3) as a result, plaintiff suffered

extreme or severe emotional distress. (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1001; Cervantez v. J.C. Penney Co. (1979) 24 Cal.3d 579, 593.) “[The] conduct [must be] directed at the plaintiff or occur in the presence of the plaintiff of whom the defendant is aware. [This] factor . . . distinguishes intentional infliction of emotional distress from the negligent infliction of such injury.” (Potter, supra, 6 Cal.4th at p. 1002, citations omitted; see also So v. Shin (2013) 212 Cal.App.4th 652, 671 [stating conduct must be directed to the plaintiff, but malicious or evil purpose is not required].)

Conduct is outrageous if it is so extreme that it exceeds the bounds usually tolerated by a civilized community and is directed at the Plaintiff. (Cervantez, supra, 24 Cal.3d at p. 593; Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injury through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (Pulver v. Avco Financial Services (1986) 182 Cal.App.3d 622, 637.) The complaint must allege “with great specificity” those acts the plaintiff believes are so extreme as to exceed all bounds usually tolerated in a civilized community. (Vasquez v. Franklin Management Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832.)

Racial harassment can satisfy the “extreme and outrageous” element when accompanied by aggravating circumstances. (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 496-499 [alleging a supervisor directed a racial slur at an employee combined with supervisor’s position of authority, awareness of the employee’s susceptibility to emotional distress, and intent to cause harm].) However, insulting language without more does not constitute extreme outrage to survive a demurrer. (Id. at p. 499; see also Smith v. BP Lubricants USA Inc. (2021) 64 Cal.App.5th 138, 147-149.)

“Severe emotional distress means ‘emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.’” (Potter, supra, 6 Cal.4th at p.

821, citation omitted.) Severe emotional distress may include “any highly unpleasant mental reaction such as fright, grief, shame, humiliation, embarrassment, anger, chagrin, disappointment or worry.” (Fletcher v. Western National Life Ins. Co. (1970) 10 Cal.App.3d 376, 397; cf. Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1377 [holding plaintiff’s allegations that defendant’s online post was very emotionally upsetting and caused her to lose sleep, have an stomach upset and generalized anxiety did not rise to the level of “severe, lasting, or enduring” emotional distress].) Such distress must be reasonable and justified under the circumstances. (Potter, supra, 6 Cal.4th at p. 821.)

The First Amended Complaint’s allegations are sufficient to constitute intentional infliction of emotional distress against defendant Ty Diaz. Plaintiff alleges defendant Ty engaged in a sustained pattern of intentional extreme and outrageous conduct directed toward Plaintiff: repeated racial slurs directed at Plaintiff at least six times in Ty’s vehicle based on his Korean race, Ty repeatedly redrawing the racist caricature in the baseball team dugout, Ty’s racially motivated exclusion of Plaintiff from his car and from sharing snacks while sharing with others, and continuous racial slurs while Plaintiff was a captive passenger in defendant Ty’s car. (FAC ¶¶ 11-19.) Next, the repeated and sustained conduct, including directing racial slurs at Plaintiff while confined to defendant Ty’s vehicle, demonstrates a reckless disregard for the probability of emotional distress to Plaintiff. (Id. ¶ 43.) Recklessness is further demonstrated through the context in which Ty’s language and conduct occurred: racial targeting of a minor student within the ongoing baseball team relationship. Moreover, Plaintiff sufficiently alleges several emotional distress: fear, humiliation, anxiety, and psychological trauma; and loss of the enjoyment of high school athletics and the social inclusion associated with team membership. (Id. ¶¶ 26, 44.)

As for defendant Ty’s parents, Plaintiff alleges Arturo and Monique are liable for the damages resulting from intentional infliction of emotional distress caused by Ty’s conduct because part of the conduct occurred while Ty was a minor in Arturo and Monique’s custody and control. (FAC ¶¶ 2-4, 9-10, 12-16, 24, 43, 45.)

“Any act of willful misconduct of a minor that results in injury or death to another person or in any injury to the property of another shall be imputed to the parent or guardian having custody and control of the

minor for all purposes of civil damages, and the parent or guardian having custody and control shall be jointly and severally liable with the minor for any damages resulting from the willful misconduct." (Civ. Code, § 1714.1, subd. (a).)

Plaintiff did not willingly participate or consent to the racial slurs, caricatures, and exclusions.

Yet, Plaintiff suffered emotional distress due to defendant Ty's conduct. Because Plaintiff alleges damages of medical and counseling expenses for his emotional distress, rather than regular emotional distress damages, Plaintiff has also adequately alleged intentional infliction of emotional distress liability against defendant Arturo and Monique. (See Civ. Code, § 1714.1, subd. (b) ["the joint and several liability of the parent or guardian having custody and control of a minor under this subdivision shall not exceed twenty-five thousand dollars (\$25,000) for each tort of the minor, and in the case of injury to a person, imputed liability shall be further limited to medical, dental and hospital expenses incurred by the injured person, not to exceed twenty-five thousand dollars (\$25,000)."].)

Therefore, the court overrules Defendants' demurrer to the Third Cause of Action.

4.

Fourth Cause of Action: Parental Liability - Willful Misconduct (Civ. Code, § 1714.1)

Plaintiff alleges willful misconduct against defendants Arturo and Monique.

Civil Code section 1714.1 does not create a separate, independent cause of action but is a vicarious liability and joinder theory. (Hoff v. Vacaville Unified School Dist. (1998) 19 Cal.4th 925, 934-935, fn. 4.) Thus, Plaintiff cannot allege both joinder liability as to under the First, Second, and Third Causes of Action pursuant to Section 1714.1 and a separate parental liability cause of action pursuant to that same statutory provision.

Therefore, the court sustains Defendants' demurrer to the Fourth Cause of Action without leave to amend.

5.

Fifth Cause of Action: Negligent
Supervision

Plaintiff alleges negligent supervision against
defendants Arturo and Monique.

Defendants contend Plaintiff fails to properly allege
Arturo and Monique breached a duty owed to Plaintiff and that the breach was a
substantial factor in causing Plaintiff's injuries.

In opposition, Plaintiff contends that he adequately
alleges causation through defendant Ty's sustained, deliberate, and repeated
monthslong pattern of conduct against Plaintiff, including his photograph of
Plaintiff in front of the racist caricature which was posted in a group chat. According to Plaintiff, Arturo and Monique's
failure to monitor, investigate, or require Ty to stop this conduct supports
causation.

Pursuant to the Restatement (Second) of Torts § 316, a
special relationship exists between parent and child, imposing a duty of care
on the parent. (Rest.2d Torts, § 316; Hoff
v. Vacaville Unified School Dist. (1998) 19 Cal.4th 925, 934-935; Ellis
v. D'Angelo (1953) 116 Cal.App.2d 310, 317-320.) A parent has a duty to exercise reasonable
care to control the minor child to prevent the child from intentionally harming
others or from so behaving as to create an unreasonable risk of bodily harm to
them. (Rest.2d Torts, § 316.) The duty is triggered only when the parent
(a) knows or has reason to know that he or she has the ability to control the
child, and (b) knows or should know of the necessity and opportunity for
exercising such control. (Id.) "There is no 'general responsib[ility] for
the rearing of incorrigible children.'"
(Id., citations omitted; see also id. illustration [parent
informed child is shooting at a target in the street, parent does not take the
rifle away or take any other action, and the child then unintentionally shoots
a pedestrian].) The duty terminates when
a child reaches the age of majority or is no longer a dependent. (K.G. v. S.B. (2020) 46 Cal.App.5th
625, 630-631 [discussing Rest.3d Torts, § 41, subd. (b) [liability for physical
and emotional harm].)

Here, the First Amended Complaint adequately alleges defendants
Arturo and Monique "as the parents of Ty Diaz with custody and control over
him, owed a duty to exercise reasonable care in supervising and directing his

conduct so as to prevent him from causing harm to third parties. That duty required them to take appropriate action when they knew or, through the exercise of ordinary parental care and diligence, should have known that Ty Diaz's conduct or associations posed an unreasonable risk of harm to others."

(FAC ¶ 54.) However, the duty is limited to Plaintiff's allegations pre-dating October of 2025, of which there are few with specific dates.

Regardless, Plaintiff fails to allege facts demonstrating Arturo and Monique's knowledge of Ty's unreasonable risk of bodily harm to others prior to the June 2025 through October 2025 incidents.

"Knowledge of dangerous habits and ability to control the child are prerequisites to imposition of liability" against parents. (Robertson v. Wentz (1986) 187 Cal.App.3d 1281, 1290.) The most critical element of a common law negligent supervision claim is the parent's prior knowledge of the child's specific dangerous propensities. In Hoff v. Vacaville Unified School District, the California Supreme Court held that "Knowledge of dangerous habits and ability to control the child are prerequisites to imposition of liability," and "only the manifestation of specific dangerous tendencies . . . triggers a parental duty to exercise reasonable care to control the minor child in order . . . to prevent harm to third persons." (Hoff v. Vacaville Unified School Dist. (1998) 19 Cal.4th 925, 935 [quoting Robertson v. Wentz (1986) 187 Cal.App.3d 1281, 1290]; see also Ellis v. D'Angelo (1953) 116 Cal.App.2d 310, 317-318.) General awareness that children can misbehave is insufficient.

Plaintiff alleges defendant Ty's sustained, deliberate, and repeated pattern of conduct over an extended period is "sufficient to give rise to parental knowledge, or constructive knowledge through the exercise of ordinary diligence, that Ty Diaz's conduct posed an unreasonably risk of harm to Plaintiff." (FAC ¶ 55.)

However, it is unclear how Arturo and Monique would have discovered Ty's conduct because his conduct occurred in the presence of teammates in his car, at the school, in the dugout during baseball games or practices, and in an unnamed group chat.

(FAC ¶¶ 10-22.) Furthermore, Plaintiff includes no factual allegations showing Arturo and Monique were aware of or made aware of defendant Ty's conduct or any dangerous propensities. Plaintiff does allege that defendants Arturo

and Monique breached their duty of reasonable supervision by “failing to monitor and oversee Ty Diaz’s conduct and associations; failing to investigate or respond to his participation in sustained racially discriminatory and intimidating behavior toward a fellow student; failing to intervene or require that the conduct stop; and failing to take any corrective action despite the duration, severity, and repeated nature of the pattern.” (FAC ¶ 56.) These allegations suggests that under a “constructive knowledge” or “should have known” theory, Arturo and Monique should have known about defendant Ty’s racially discriminatory conduct through diligent monitoring his conduct in the context of his school and teammates. However, Plaintiff must still allege specific facts showing that Arturo and Monique would have known about Ty’s dangerous propensities, such as prior similar acts, warnings from others, or other specific observable conduct predating the June 2025 through September of 2025 conduct.

Finally, the court cannot accurately analyze when Arturo's and Monique’s duty was terminated because Plaintiff does not delineate between conduct occurring before and after defendant Ty reached the age of majority. However, Plaintiff claims he can amend the First Amended Complaint to allege (1) Ty's confirmed date of birth and the resulting allocation of conduct occurring before and after he attained the age of majority; (2) additional facts regarding the actual knowledge of Arturo and Monique, including their membership in and receipt of communications through the team parents' group chat, the ownership of and access to the vehicle in which the harassment occurred, their presence at team events during the relevant period, and their opportunity to control Ty's conduct while he remained a minor. (Opposition at p. 12:5-18.)

Therefore, the court sustains Defendants' demurrer to the Fifth Cause of Action with leave to amend.

6.

Sixth Cause of Action: Civil
Conspiracy

Defendants contend there is no bad or wrongful act to tie all defendants to each cause of action to support a conspiracy claim. (Demurrer at p. 8:5-7.) According to Defendants, all defendants did not have actual knowledge of a conspiracy.

Plaintiff acknowledges civil conspiracy is not a separate cause of action but a joint liability theory and seeks leave to amend in order to allege joint liability within each substantive cause of action. (Opposition at p. 13:9-12.) Plaintiff insists he adequately alleges a wrongful act through the teammates' agreement to engage in discriminatory and retaliatory conduct against Plaintiff.

Civil conspiracy is not an independent cause of action or tort under California law, but rather a theory of joint liability that allows plaintiffs to hold multiple defendants responsible for an underlying civil wrong or tort. (Navarrete v. Meyer (2015) 237 Cal.App.4th 1276, 1291-1292 ["[F]or conspiracy liability, the conspiring defendants must have actual knowledge that a tort is planned and concur in the scheme with knowledge of its unlawful purpose."]; Hoang v. Tran (2021) 60 Cal.App.5th 513, 539.)

As with Plaintiff's cause of action under Civil Code section 1714.1, any civil conspiracy theory must be alleged as a theory of joint liability concerning an underlying tort.

Therefore, the court sustains Defendants' demurrer to the Sixth Cause of Action without leave to amend.

B. Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof." (Code Civ. Proc., § 435.) A court may, upon motion or at any time, strike from the complaint "any irrelevant, false, or improper matter" or "all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., §§ 436, subds. (a)-(b), 187; Greshko v. County of Los Angeles (1987) 194 Cal.App.3d 822, 830 [noting the court's inherent power to limit the focus of the proceedings to the issues framed by the remaining viable pleadings].) An "irrelevant matter" is an allegation that "is not essential to the statement of a claim or defense," "is neither pertinent to nor supported by an otherwise sufficient claim or defense," or "a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Code Civ. Proc., § 431.10, subds. (b)-(c).)

The court must read the factual allegations in the complaint as a whole and assume their truth. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Defendants move to strike the following from the First Amended Complaint:

Page 13, Paragraph 16: "The conduct of Defendant Ty Diaz was malicious, oppressive, and despicable within the meaning of California Civil Code section 3294. Plaintiff seeks punitive damages against Defendant Ty Diaz individually, in an amount to be determined by the jury.";

Page 19, Prayer for Relief, Lines 19-20; and

Page 20, Prayer for Relief, Lines 21-22.

The court grants the motion as to Page 20, Prayer for Relief, Lines 21-22 because the court has sustained the demurrer to the Sixth Cause of Action without leave to amend.

The court denies the motion as to the Third Cause of Action and Prayer for Relief, Page 19, Lines 19-20.

A motion to strike punitive damages may lie where the alleged facts do not rise to the level of "malice, fraud, or oppression" required to support punitive damages. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.) To state a prima facie claim for punitive damages, a complaint must set forth specific facts demonstrating the elements stated in Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721; see also Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) "Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Id. at p. 725; Civ. Code, § 3294, subd. (c)(1).) Oppression is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294,

subd. (c)(2).) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).) “Malice and oppression may be inferred from the circumstances of a defendant’s conduct.” (J. R. Norton Co. v. General Teamsters, Warehousemen & Helpers Union, Local 890 (1989) 208 Cal.App.3d 430, 444.)

Conclusory statements characterizing a defendant’s conduct as intentional, willful, and fraudulent are insufficient to plead fraud or malice. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) The complaint must state “specific facts showing that defendant’s conduct was oppressive, fraudulent or malicious (e.g., that defendant acted with the intent to inflict great bodily harm on plaintiff or to destroy plaintiff’s property or reputation).” (Croskey, et al., Cal. Prac. Guide: Insurance Litigation Ch. 13-C (Thomson Reuters, 2016) ¶ 13:197.2; see Anschutz Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643 [allegations that defendant’s conduct was “intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff’s rights” did not satisfy specific pleading requirements].) A complaint must plead ultimate facts to support punitive damages. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255; Antelope Valley Groundwater Cases (2020) 59 Cal.App.5th 241, 265 [“[T]he term ‘ultimate fact’ generally refers to a core fact, such as an essential element of a claim.”].)

According to the First Amended Complaint, defendant Ty’s conduct was “malicious, oppressive, and despicable” and Plaintiff seeks punitive sanctions against defendant Ty only. (FAC ¶ 46.)

Plaintiff alleges sufficient factual allegations demonstrating defendant Ty intentionally engaged in despicable conduct directed at Plaintiff in a manner showing a conscious disregard for Plaintiff’s rights and resulting emotional harm and economic harm to Plaintiff.

While a minor and as an adult, defendant Ty targeted and

racially harassed Plaintiff through a pattern of repeated conduct: directing racial slurs at Plaintiff while confined in Ty's car on six separate occasions; participation in redrawing a racist caricature of Plaintiff in the team dugout and sending the photo of Plaintiff and the caricature to a group chat; daily use of the racially mocking nickname "Eri Kim" with an exaggerated imitation of an Asian accent; and deliberate racial conflation of Plaintiff with another Asian student by Defendant Ty Diaz on or about December 22, 2025. (FAC ¶¶ 10, 11-19.)

Each of these words and acts together demonstrate despicable conduct showing a conscious disregard for Plaintiff's rights: repeated use of a racial slur ("chink") directed toward minor Korean American student while confined in the speaker's vehicle(a captive setting); redrawing a racist Asian caricature exaggerating Plaintiff's physical features is a form of dehumanizing conduct; daily mocking nickname ("Eri Kim") with an exaggerated accent; and racial misidentification in the presence of Plaintiff's teammates (a form of public humiliation). (See generally *Alcorn v. Anbro Engineering*, supra, 2 Cal.3d 493; *College Hospital, Inc. v. Superior Court*, supra, 8 Cal.4th 704; *Smith v. BP Lubricants USA, Inc.*, supra, 64 Cal.App.5th 138; *Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 628-631.)

As a result of defendant Ty's conduct, Plaintiff suffers severe emotional distress – fear, humiliation, anxiety, and psychological trauma – which resulted in Plaintiff leaving the school, losing athletic participation, and impairing his educational and career opportunities with the Air Force Academy candidacy. (FAC ¶¶ 26, 44.)

Therefore, the court denies Defendants' motion to strike punitive damages as to the Third Cause of Action.

CONCLUSION and ORDER

Demurrer to the First, Second, and Fifth Causes of Action is sustained with leave to amend. Demurrer to the Fourth and Sixth Causes of Action is sustained without leave to amend. Demurrer to the Third Cause of Action is overruled.

Motion to strike is denied in part as to the Third Cause of Action. Motion to strike

is granted in part without leave to amend as to the Sixth Cause of Action.

The court strikes the following from the
First Amended Complaint: Page 20, Prayer
for Relief, Lines 21-22.

Plaintiff may file and serve an amended
complaint within 30 days of this order.

Defendants to give notice.